

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	01-07-2026 11:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	01-07-2026 11:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	90 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम / Department Name	Na
संगठन का नाम / Organisation Name	Hindustan Petroleum Corporation Ltd
कार्यालय का नाम / Office Name	Petroleum House
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	yogeshverma@hpcl.in
कुल मात्रा / Total Quantity	41
वस्तु श्रेणी / Item Category	FCCU 2 RCSP MEJ , Supervision charges
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Supervision charges
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	General Purpose Battery Chargers, Touchless Soap Dispenser (V3), Battery Chargers For Transceivers (V2), Heavy Duty Battery Charger, Electrostatic Discharge Chairs (V2), DC EV Charging Station, AC EV Charging Station, Charging Station, Solar Based Home Systems (Solar Power Packs): AC Models as per MNRE Specifications, Electric Racket (Battery Operated) For Fly And Mosquito
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	Expansion Joints (Pipe fitting)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	5
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	FCCU 2 RCSP MEJ
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	Yes
Inspection to be carried out by Buyers own empanelled agency	Yes
Type Of Inspection	Stage-wise Inspection
Name of the Empanelled Inspection Agency/ Authority	Board of Officers
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No

बिड विवरण/Bid Details**सुलह खंड/Mediation Clause**

Yes ([Mediation clause document](#)) as per DoE OM No.F.1/2/2024-PPD dated 03.06.2024 mediation clause should not be routinely included in contracts and pre-litigation mediation can be taken up without any such clause also

ईएमडी विवरण/EMD Detail

आवश्यकता/Required

No

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank

ICICI

ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)

5.00

ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).

18

(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

Mumbai Refinery
HPCL Mumbai Refinery
(Hpcl)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference

Yes

मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि
उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase
Preference to MII sellers available upto price
within $L1+X\%$

20

मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा
का अधिकतम प्रतिशत / Maximum Percentage of Bid
quantity for MII purchase preference

100

सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement(Preference to Make-in-india) order 2017 date 16.09.2020(as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order(as amended and applicable time to time)
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Preference to Make In India products (For bids < 200 Crore):Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.

[OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the

manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

3. Inspection of Stores by Nominated Inspection Authority / Agency of buyer or their authorized representatives

An independent third party Professional Inspection Body can help buyer in mitigating buyer's risk with pre-dispatch/post-dispatch inspection in order to ensure that equipment, components, solutions and documentation conform to contractual requirements. The buyer has a right to inspect goods in reasonable manner and within reasonable time at any reasonable place as indicated in contract. Inspection Fee/ Charges (as pre-greed between buyer and Inspection Agency) would be borne by the buyer as per their internal arrangement but may be recovered from the seller if the consignment failed to conform to contractual specification and got rejected by the Inspection Officer. If so requested and accepted by the seller, initially seller may pay for inspection charges as applicable and get the same reimbursed from buyer if consignment accepted by the Inspecting Officer. For reimbursement seller has to submit proof of payment to Inspection Agency.

Seller/OEM shall send a notice in writing / e-mail to the Inspecting officer / inspection agency specifying the place of inspection as per contract and the Inspecting officer shall on receipt of such notice notify to the seller the date and time when the stores would be inspected. The seller shall, at his own expenses, afford to the Inspecting officer, all reasonable facilities as may be necessary for satisfying himself that the stores are being and or have been manufactured in accordance with the technical particulars governing the supply. The decision of the purchaser representative /inspection authority regarding acceptance / rejection of consignment shall be final and binding on the seller.

The Seller shall provide, without any extra charge, all materials, tools, labour and assistance of every kind which the Inspecting officer may demand of him for any test, and examination, other than special or independent test, which he shall require to be made on the seller's premises and the seller shall bear and pay all costs attendant thereon.

The seller shall also provide and deliver store / sample from consignment under inspection free of charge at any such place other than his premises as the Inspecting officer may specify for acceptance tests for which seller/OEM does not have the facilities or for special/ independent tests.

In the event of rejection of stores or any part thereof by the Inspecting officer basis testing outside owing to lack of test facility at sellers premises, the seller shall, on demand, pay to the buyer the costs incurred in the inspection and/or test. Cost of test shall be assessed at the rate charged by the Laboratory to private persons for similar work.

Inspector shall have the right to put all the stores or materials forming part of the same or any part thereof to such tests as he may like fit and proper as per QAP/governing specification. The seller shall not be entitled to object on any ground whatsoever to the method of testing adopted by the Inspecting officer.

Unless otherwise provided for in the contract, the quantity of the stores or materials expended in test will be borne by seller.

Inspecting officer is the Final Authority to Certify Performance / accept the consignment. The Inspecting officer's decision as regards the rejection shall be final and binding on the seller.

The seller shall if so required at his own expense shall mark or permit the Inspecting officer to mark all the approved stores with a recognised Government or purchaser's mark.

4. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

FCCU 2 RCSP MEJ (1 pieces)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Munaganuri Sravan	530011,HPCL, Visakh Refinery, PB No. 15, Malkapuram, Visakhapatnam-530011	1	112

Supervision Charges (40 pieces)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Munaganuri Sravan	530011,HPCL, Visakh Refinery, PB No. 15, Malkapuram, Visakhapatnam-530011	40	450

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Scope of Supply

Scope of supply (Bid price to include all cost components) : Only supply of Goods

3. Generic

Buyer Organization specific Integrity Pact shall have to be complied by all bidders. Bidders shall have to upload scanned copy of signed integrity pact as per Buyer organizations policy along with bid. [Click here to view the file](#)

4. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

SALIENT INSTRUCTIONS TO BIDDER - (superseding GeM GTC)

Please fill-up the required details and attached with un-priced bids

Vendor Name	
Name & Designation of the Contact Person	
Contact Number of person (Mobile)	
Email -ID	
PAN No. (Pls Attach PAN Copy along with Bid)	
GSTIN Number (Pls Attach GSTIN Certificate Copy along with Bid)	
Applicable GST% on the offer items *(please ensure quoted price is inclusive of applicable GST and other extras)	

Vendor to submit declaration regarding status of debarment/holiday listing by other PSUs

Please see that submitting signed and stamped Integrity Pact along with the bid is mandatory. Bid will be rejected if integrity pact is not submitted

*Payments Terms-

As per Special T&C, given in notes below.

*LD / Price Reduction Clause for Delayed Delivery: Applicable

As per Special T&C, given in notes below.

*Security Deposit: Not Applicable

*Retention Money/Performance Bank Guarantee: Applicable (5% of PO value)

HPCL PBG format, as below-

PERFORMANCE BANK GUARANTEE

(on non-judicial stamp paper of appropriate value)

To,

Hindustan Petroleum Corporation Ltd.,

(Address as applicable)

IN CONSIDERATION OF THE HINDUSTAN PETROLEUM CORPORATION LTD. a

Government of India Company registered under the Companies Act, 1956, having its registered office at 17, Jamshedji Tata Road, Bombay - 400 020 (hereinafter called "the Corporation" which expression shall include its successors and assigns) having awarded to M/s

_____ a partnership firm/sole

proprietor business/a company registered under the Companies Act, 1956 having its office at

_____ (hereinafter referred to as "the Supplier" which expression shall wherever the subject or context so permits includes its successors and assigns) a supply contract in terms inter alia, of "the Corporation's" Order No. _____ dated _____ and the General procurement conditions of "the Corporation" and upon the condition of "supplier's" furnishing security for the performance of "the Supplier's" obligations and/or discharge of "the supplier's" liability under and/or in connection with the said supply contract upto a sum of _____ (Rupees _____) amounting to 5% (five percent) of the total contract value.

We, _____ (hereinafter called "the Bank" which expression shall include its successors and assigns) hereby jointly and severally undertake and guarantee to pay to "the Corporation" in rupees forthwith on demand in writing and without protest or demur of any and all moneys anyway payable by "the Supplier" to "the Corporation" under, in respect of or in connection with the said supply contract inclusive of all the Corporation's losses and damage and costs, (inclusive between attorney and client) charges, and expenses and other moneys anyway payable in respect of the above as specified in any notice of demand made by "the Corporation" to the Bank with reference to this Guarantee upto and aggregate limit of _____ (Rupees _____) and "the Bank" hereby agrees with "the Corporation" that:

1. This Guarantee/Undertaking shall be a continuing Guarantee /Undertaking and shall remain valid and irrevocable for all claims of "the Corporation" and liabilities of "the Supplier" arising upto and until midnight of _____.

2. This Guarantee/Undertaking shall be in addition to any other guarantee or security whatsoever that "the Corporation" may now or any time anyway have in relation to "the Supplier's" obligation/liabilities under and/or connection with the said supply contract, and "the Corporation" shall have full authority to take recourse to or enforce this security in preference to the other security(ies) at its sole discretion and no failure on the part of "the Corporation" to enforcing or requiring enforcement to any other security shall have the effect of releasing "the

Bank" from its full liability hereunder.

3. "The Corporation" shall be at liberty without reference to "the Bank" and without affecting the full liability of "the Bank" hereunder to take any other security in respect of "the Supplier's" obligation and/or liabilities under or in connection with the said supply contract and to vary the term vis-a-vis "the supplier" of the

said supply contract or to grant time and/or indulgence to "the Supplier" or to reduce or to increase or otherwise vary the prices of the total contract value or to release or to forebear from enforcement of all or any of the obligations of "the supplier" under the said supply contract and/or the remedies of "the Corporation" under any other security(ies) now or hereafter held by "the Corporation" and no such dealing(s), variation(s) or other indulgence(s) or agreement(s) with "the supplier" or release of forbearance whatsoever shall have the effect of releasing "the Bank" from its full liability to "the Corporation" hereunder or of prejudicing rights of "the Corporation" against "the Bank".

4. This Guarantee/Undertaking shall not be determined or affected by the liquidation or winding up, dissolution or change of constitution or insolvency of "the supplier" but shall in all respects and for all purposes be binding and operative until payment of all moneys payable to "the Corporation" in terms hereof.

5. "The Bank" hereby waives all rights at any time inconsistent with the terms of this

Guarantee/Undertaking and the obligations of "the Bank" in terms hereof shall not be anywhere affected or suspended by reason of any dispute having been raised by "the suppliers" (whether or not pending before any arbitrator, officer, tribunal or court) or any denial of liability by "the supplier" or any other order of communication whatsoever by "the supplier" stopping or preventing or purporting to stop or prevent any payment by "the Bank" to "the Corporation" in terms hereof.

6. The amount stated in any notice of demand addressed by "the Corporation" to "the Bank" as liable to be paid to "the Corporation" by "the supplier" or as suffered or incurred by "the

Corporation" on account of any losses or damages or costs, charges and/or expenses shall be as between "the Bank" and "the Corporation" be conclusive of the amount so liable to be paid to "the Corporation" or suffered or incurred by "the Corporation", as the case may be, and payable by "the Bank" to "the Corporation", in terms hereof.

7. Notwithstanding anything contained herein above:

i. Our liability under this guarantee shall not exceed

ii. This Bank Guarantee shall be valid upto and including; and

iii. We are liable to pay the guarantee amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or # *before the expiry of 30 days from the date of expiry of this guarantee* .

8. "The Bank" has power to issue this guarantee in favour of "the Corporation" in terms of the documents and/or the agreement/contract or MOU entered into between "the supplier" and "the Bank" in this regard.

IN WITNESS Where of _____ Bank, has executed this document at _____ on _____ 199 .

_____ Bank

(by its constituted attorney) (signature of a person authorized to sign on behalf of "the Bank

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PRE QUALIFICATION CRITERIA

The bidders, intending to participate shall fulfil the following qualification criteria (a (technical & financial), otherwise their bid will be rejected.

S.NO.	DESCRIPTION
1.0	TITLE: This requisition is for Design, Fabrication & supply of MEJs for FCCU II RCSP.

2.0	The bidders who intend to participate in the tendering process, shall meet all the following minimum prequalification criteria – Technical and Financial mentioned below and offers from such bidders shall be qualified for further evaluation.												
3.0	PRE-QUALIFICATION CRITERIA: All the criteria under clause 3.1 to 3.3 shall be met with by the bidder in the capacity of principal contractor.												
TECHNICAL CRITERIA:													
3.1	Bidder shall have experience of having successfully carried out and completed similar work during the last 7 years ending last day of the month previous to the one in which applications are invited, which experience should be any one of the following: <table><tr><th rowspan="2">Sr. No</th><th rowspan="2">Experience (Either of following)</th><th colspan="2">Value of completed works/supply</th></tr><tr><th>For Non-MSEs</th><th>For MSEs</th></tr><tr><td>1</td><td>One similar completed works, each costing not less than the amount</td><td>Rs. 100.64 lakhs</td><td>Rs. 85.5 Lakhs</td></tr></table> Definition of similar work: Similar work is defined as having experience in completing similar work defined/listed below in India: “Having designed, fabricated & supplied internal abrasive resistance lined (Hexmesh + Refractory) Universal Metallic Expansion Bellows, with Pantographic linkage on hinge and Gimbal mounting, for severe service application (Hydrocarbon gas with catalyst/erosive particles content) and high temperature (>500 °C) similar to that of FCCU/RFCCU units of any Petroleum/ Petrochemical Refinery. The supplied EJ shall have proven track record for satisfactory performance for at least one year from date of commissioning at client site. Accordingly, the bidder shall provide performance certificate/client endorsement linking the reference PO.” DOCUMENTS: Details of Purchase Order(s) mentioning the PO/Order Number, Date, IRN report, drawings/Data Sheets, Client Name, Address, Contact Number, Contact Email, Reference Contact Person, item details (in line or similar to the items mentioned in the tender) and copies of Job Completion Certificates or any other support documents such as Delivery Receipts / Client Acknowledgements / Payment Receipts / Client Endorsement by mail or letters, etc. to support/prove the successful supply of similar items as well as satisfactory performance of items/materials supplied in recent past to Industries mentioned. Bidders shall upload the scanned copy of the above documentary evidence in support of the above Financial and Technical Criteria for Pre-Qualification: Bidders shall upload the scanned copy of the Audited balance sheets and profit & loss accounts statements.			Sr. No	Experience (Either of following)	Value of completed works/supply		For Non-MSEs	For MSEs	1	One similar completed works, each costing not less than the amount	Rs. 100.64 lakhs	Rs. 85.5 Lakhs
Sr. No	Experience (Either of following)	Value of completed works/supply											
		For Non-MSEs	For MSEs										
1	One similar completed works, each costing not less than the amount	Rs. 100.64 lakhs	Rs. 85.5 Lakhs										
FINANCIAL CRITERIA:													

3.2	Average Annual financial turnover of the bidder during the last three years ending 31.03. 2026 shall be a minimum of <table border="1"> <tr> <td colspan="2">Average Annual financial turnover of the bidder during the last three years</td></tr> <tr> <td>For Non-MSEs</td><td>For MSEs</td></tr> <tr> <td>Rs. 74.48 Lakhs</td><td>Rs. 63.30 Lakhs</td></tr> </table>	Average Annual financial turnover of the bidder during the last three years		For Non-MSEs	For MSEs	Rs. 74.48 Lakhs	Rs. 63.30 Lakhs
Average Annual financial turnover of the bidder during the last three years							
For Non-MSEs	For MSEs						
Rs. 74.48 Lakhs	Rs. 63.30 Lakhs						
3.3	In case, the last financial year closing date is within 9 months of bid due date and audited annual report of immediately preceding financial year is not available, bidder has the option to submit the financial details of the three previous years immediately prior to the last financial year. Otherwise, it is compulsory to submit the financial details of the immediate three preceding financial years.						
4.0	Documents. A. Bidder shall submit the complete audited Balance sheets, profit and loss account/Financial Statements for the immediate (3) three preceding financial years duly signed/ stamped by Chartered Accountant along with Valid UDIN number. B Complete documentary evidence by way of copies of Purchase orders in English, completion certificates, balance sheets (last 3 years), etc. shall be provided along with Technical Bid in support of their fulfilling the Qualification Criteria. All documents for financial criteria shall clearly mention the UDIN no, CA sign etc.						
5.0	All above indicated amounts in PQC are inclusive of GST. PO Executed Values shall be considered for Technical Criteria.						
6.0	Bidders shall understand the detailed scope of work in Attachment and obtain clarifications, if any, on the scope in its entirety.						
8.0	HPCL also reserves the right to use their in-house information for assessment of Tenderer's capabilities. Bidder shall provide contact number, email ids of the users who have issued completion certificates on request.						
9.0	Eligibility Criteria Parties who are affiliates of one another can decide which affiliate will make a bid. Only one affiliate may submit a bid. Two or more affiliates are not permitted to make separate bids directly or indirectly. If 2 or more affiliates submit a bid, then any one or all of them are liable for disqualification. "Affiliate" of a Party shall mean any company or legal entity which: a) controls either directly or indirectly a Party, or b) which is controlled directly or indirectly by a Party; or c) is directly or indirectly controlled by a company, legal entity or partnership which directly or indirectly controls a Party. "Control" means actual control or ownership of at least a 50% voting or other controlling interest that gives the power to direct, or cause the direction of, the management and material business decisions of the controlled entity.						

2. Bids may be submitted by:

- a) Sole bidder: a single person (Sole Proprietorship) or entity;
- b) A newly formed incorporated joint venture (JV) which has not completed 3 financial years from the date of commencement of business;
- c) Subsidiaries / Affiliates of Indian or foreign companies Fulfilment of Eligibility criteria and certain additional conditions in respect of each of the above types of bidders are stated below:
 - a) The bidder (including an incorporated JV which has completed 3 financial years after date of commencement of business) shall fulfil each qualification criteria (PQC).
 - b) In case the bidder is a newly formed and incorporated joint venture and which has not completed three financial years from the date of commencement of business, then either the said JV shall fulfil each qualification criteria (PQC) or any one constituent member/ promoter of such a JV shall fulfil each qualification criteria (PQC). If the bid is received with the proposal that one constituent member/ promoter fulfils each qualification criteria (PQC), then this member/promoter shall be clearly identified and he/it shall assume all obligations under the contract and provide such comfort letter/guarantees as may be required by the Corporation. The guarantees shall cover inter alia the commitment of the member / promoter to complete the entire work in all respects and in a timely fashion, being bound by all the obligations under the contract, an undertaking to provide all necessary technical and financial support to the JV to ensure completion of the contract when awarded, an undertaking not to withdraw from the JV till completion of the work, etc. See Annexure. (PARENT COMPANY GUARANTEE)
 - c) Subsidiaries / Affiliates of Indian or foreign companies which are registered in India and having manufacturing facilities or establishment towards providing services in India are allowed to participate in this tender, subject to meeting the local content provisions as per the MII (make in India) clause enclosed with the tender. Such entities can participate either on the basis of their credentials (Technical or Financial) or on the basis of the credentials (Technical or Financial) of their parent/ affiliate company, as per the PQC requirements applicable for this tender. If credentials of parent/ affiliate are sought to be relied upon, then the Indian subsidiary must meet the other PQC, either Technical or Financial. Moreover, the parent/affiliate will also provide suitable Guarantees to ensure completion of the work in all respects. See Annexure. In case the parent / affiliate company is from a country which shares a land border with India, then the subsidiary / affiliate company will be eligible to bid in this tender only if the parent / affiliate company is registered with the Competent Authority constituted by the Department for Promotion of Industry and Internal Trade (DPIIT).

NOTES TO VENDOR:

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Notes to Vendor:

1. Detailed Job scope:

- a. HPCL is planning to carry out replacement of refractory lined Metallic expansion joints installed in Stand Pipes of RR section in FCCU-II unit. Agency to carry out design, procure the r

aw material, manufacture the item, carry out NDTs as per QAP & supply the item on the basis of attached data sheet and GA drawing of Reactor. This MEJ shall be installed during the Turnaround of the unit planned in Q3 of FY 2026-27. Hence, supervision during installation also is part of this order.

b. Expansion joints shall be designed to fit the existing dimensions as per HPCL Reactor GA Drawings.

c. The vendor shall follow HPCL QAP for fabrication. No deviation is allowed in this regard.

d. The contractor shall ensure quality of the installed refractory and inspection of the same at all stages by a qualified refractory inspector.

e. Any defects/ refractory damage identified at site shall be rectified / repaired by vendor before erection at no extra cost.

f. Vendor to carry out Surface preparation, painting & galvanizing on the external surface as per drawing.

g. Vendor to take all technical/ commercial clarifications prior to the submission of bids.

h. Detailed micro level bar chart is to be submitted within 7 days from the date of PO/LOA, whichever is earlier, this bar chart shall include timelines for Material procurement, drawing preparation, Stage wise Fabrication, Quality checks, Delivery etc. Vendor to submit progress report of fabrication activities every fortnightly along with factory photos.

2. Vendor's scope of supply: All Materials and Services required for design, fabrication, assembly, testing, and supply & supervision services during installation of the MEJ.

3. HPCL Scope: NIL

4. Attachments:

a. Annexure-I: Deviation sheet Format.

b. Annexure-II: Data Sheet of Expansion joints

c. Annexure-III: QAP (FCCU EXPANSION BELLOW)

d. Annexure-IV: Drawings related to MEJ

e. Annexure-V: List of approved TPIs

f. Annexure-B: PQC

5. Third Party Inspection:

a. Third Party Inspection: TPI Shall be arranged by vendor and cost shall be borne by vendor. Agency is advised to go through the attached QAP carefully and quote accordingly.

b. TPI & NDT scope specified in the QAP is to be complied without any deviation. Stage wise clearance to be obtained as per QAP. At every stage of QAP vendor shall forward relevant certificates / documents in support of the satisfactory completion of inspection activity at that stage as per QAP and shall take clearance from HPCL/TPI in writing prior to proceeding further. All Original TPI clearance certificates to be furnished to HPCL along with the delivery.

c. HPCL shall have access to inspect the job being carried at any time, in addition to third party inspection

- d. List of TPI Agencies – As per attached Annexure-V.
- e. The final expansion joint assembly shall be pressure tested in accordance with the ASME B31.3 Code. Recommendations of the EJMA Standards shall be followed.
- f. Pressure testing shall be performed with the expansion joint assembly aligned. Installed offset or pre-set, if any, shall be installed subsequent to the testing procedure.
- g. Pressure testing of expansion joints shall engage slotted hinges or tie assemblies to verify their load carrying capability.
- h. In the event of any material or workmanship failure while inspection cost of the resulting repairs / replacement and re-inspection shall be borne by vendor.
- i. Any omission/failure on the part of third-party inspection to disapprove/reject shall not be construed to be an acceptance of any defective work by HPCL if fabrication defects are detected by HPCL at any stage, vendor to rectify or replace the items at no extra cost.

6. Drawing Approval:

- a. GA drawings of reactor are attached for reference. Drawings developed on the basis of datasheet and attached specifications shall be submitted (soft form also acceptable) by the vendor after receipt of Purchase Order / Letter of Intent / Fax of Intent, whichever is earlier. HPCL, in turn, shall review the drawings & approve and return the same to the vendor within 4 weeks of receipt of the same provided the drawings and details are clear & meet all technical requirements. This 4 weeks' time taken for drawing approval is included in the delivery period of 16 weeks.
- b. Time delays due to late submission or submission of incorrect or submission of unclear details shall be considered delay from the vendor and no delivery extension shall be given.
- c. Vendor may depute their design team to HPCL Visakh Refinery for any clarification across the table and for drawings approval. Data / details given in attached existing as built drawings for some cases / reasons may not be complete for some components, in such cases vendor to assume accordingly as per standard and incorporate in the drawing and submit for HPCL approval

7. Supervision for Installation and Commissioning Of MEJ:

- a. Installation of these MEJs shall be carried out (Tentatively in Q3 of 26-27) by separate agency deployed by HPCL. Vendor to depute their service engineer to HPCL, Visakh Refinery for the supervision of the same for approx. 20 days (i.e. 40 shifts, 12 Hrs. each). Since this is a unit shutdown activity, Vendor may be required to depute two service engineers for supervision in day & night (one in each shift of 12 Hrs.) as per HPCL advice. Based on site progress/constraints, more than one visit may also be required.
- b. Vendor will be intimated 7 days in advance to depute their supervisor to the site. However, any delay in deputing the service engineer beyond the stipulated date shall attract penalty as mentioned in PRC clause.
- c. B-Tech in Mechanical Engg. Or any other relevant Discipline with minimum 2 years (or Diploma in Mechanical with minimum 3 years) of relevant experience in installation/ design of MEJ shall be the criteria for acceptance as supervisor for site deputation at HPCL, VR.
- d. After receiving intimation from HPCL for deputation of supervisor(s), Vendor shall provide the Qualification and experience details of the persons being mobilized for HPCL review.
- e. Vendor to note that the claim against the supervision charges shall be only accepted upon

n submission of the following documents post erection of the MEJs

- i. Attendance report duly signed by Engineer-In-Charge of the HCPL Site Execution team.
- ii. Site Erection report of the MEJs duly mentioning all the sequential activities of successful erection and further recommendations.
- f. In any case the erection is completed before 20 days, supervision charges shall be paid only till date of completion. However, in cases where the erection goes beyond 20 days, vendor shall be required to complete the supervision till the completion of the Line-item quantity.
- g. Start date for payment of the supervision charges shall be considered on the day vendor's supervisor/engineer reports to HPCL and not from the day of landing at Vizag (if this falls earlier to the day of reporting). Similarly End date for supervision shall be the last day reported to HPCL by the supervisor and not the day of departure from Vizag (if this falls after the last reported day). Vendor shall note the same accordingly.

Note: Rate furnished under this line item includes all the following

- i. Supervision charges inside the refinery for erection of the MEJs.
- ii. To and for charges from vendors location to HPCL, Visakh Refinery.
- iii. Lodging and conveyance charges for supervision.

Vendor to clearly note the above inclusions and understand that no additional charges, under any circumstances, shall be paid therefore.

Rate Payable shall be per Man Shift of supervision services provided.

8. Technical deviations: Vendor to clearly specify technical deviations taken in a separate sheet of paper with page heading Technical Deviations (Annexure-I). Vendor to note that only these deviations shall be considered as deviations & deviations mentioned by agency elsewhere shall not be considered as deviations. Agency to note that such deviations from tender conditions may lead to technical rejection of their bid. However, agency to note that deviations against QAP is not at all applicable and shall be rejected on technical grounds.

9. Rejection Criterion during technical review: Agency to note that following shall be rejection criterion during technical review. Agency to note the same and quote accordingly.

- a. Disqualification in PQC criteria.
- b. Deviation in Delivery period.
- c. Deviation in QAP.
- d. Deviation in Specifications (Except approved by HPCL).

Note: No technical deviations are acceptable. HPCL recommends to follow the specification as provided in the tender as it is without any modifications. Bids taking technical deviations are liable for technical rejections. In case Bidder wish to offer superior or equivalent design/ MOC of components/fabrication process, etc, those can be mentioned in the offer with adequate technical justification / standards for HPCL review and technical qualification if suited to the requirement. The commercial implications that arise due to these changes in specific

ations that are technically approved by HPCL are to be borne by Bidder.

e. Bidder shall provide an undertaking to the effect that all tender technical documents & attachments are fully read and understood and the material would be supplied without any technical deviation.

f. The details & documents as per above shall be provided along with technical bid for HPCL review & technical evaluation of bid. Bids without these details are liable for technical rejection / disqualification. As a part of technical evaluation, HPCL may request for further feedback or technical details from the clients referred by bidder in their technical bid. No response within stipulated time (OR) poor/unsatisfactory feedback (OR) inadequate response from client referred by bidder is considered a technical deviation/incomplete bid and such bids will be rejected technically. [Note: Certificates issued by authorized person of owner are acceptable. Certificates issued by the contractors are not acceptable]

g. Further, the Product Performance/ Workmanship feedback available with HPCL against the past supplies made to HPCL or any other companies for similar items will be considered for technical evaluation of bid and in case, performance of any bidder is found to be unsatisfactory/poor due to reasons attributable to the bidder, those bids are liable for technical rejection. HPCL's decision on technical qualification is final and is binding on the bidder.

10. Technical Evaluation requirement: Vendor to submit the following details along with Bid for HPCL review:

a. All necessary documents meeting the Pre-Qualification Criteria (PQC) of the tender as per Annexure B.

b. Declaration for Nil Technical Deviation

11. How to quote:

a. For item No 1: Vendor shall quote Lumpsum value for supply of MEJ as per line description. Charges towards TPI, P&F, and Transportation shall be inclusive in line item. Only taxes shall be payable extra.

b. For item no 2 (Supervision Services): Vendor shall quote Lump sum value per person per 12 Hrs. shift of supervision. Vendor to note that the 40 shifts indicated is only tentative and that payment shall be made only on the actual number of shifts supervised for the installation job. Rate furnished under this line item includes all the following

a. Supervision charges inside the refinery for erection of the MEJs.

b. To and for charges from vendors location to HPCL, Visakh Refinery.

c. Lodging and conveyance charges for supervision.

c. Vendor to clearly note the above inclusions and understand that no additional charges, under any circumstances, shall be paid therefore

d. Only taxes shall be payable extra.

12. Delivery:

a. MEJ to be supplied at Ware house within 16 weeks (112 days)

from the date of GeM Purchase Order/ Letter of Intent / Fax of Intent released (whichever is earlier) by HPCL.

b. Vendor to obtain dispatch clearance from HPCL before material dispatch. Material received in HPCL without obtaining dispatch clearance shall be rejected. Vendor to submit all the Documents along with the supply of material.

c. Materials and Final Documents to be supplied at HPCL Visakh Refinery warehouse. Vendor to note that Material receipt date or Final Documents receipt date at HPCL VR Warehouse whichever is later shall be considered as Order Delivery Date.

d. Any delay in this regard shall attract provisions of Price Reduction clause.

e. Vendor to note that Delivery period is a rejection criterion and offers with delivery period longer than given above will be summarily rejected / liable for rejection. Offers quoting shorter delivery periods are acceptable.

f. Time and quality are the essence of the contract. The items covered under this tender are required for the planned Project at HPCL-VR. Any significant delay will affect the project schedule and the item also may not be useful if not received before project. Hence, in case material is not delivered by agency within the delivery period due to the reasons not attributable to HPCL, HPCL shall have discretion to accept or reject the material beyond the delivery due date depending upon its requirement in future. In case of any controversy, HPCL's decision shall be final and binding.

13. Price Reduction clause (PRC):

a. For Line item 1: In case of delay in completing the supply beyond the period of purchase order the agency shall be liable to pay penalty at the rate of 0.5% of the total line-item cost for every week subject to a maximum of 5% of the total line-item cost.

b. For Line item 2: In case of delay in mobilizing the supervisor as per the timeline furnished in the contract, penalty of Rs. 5,000 per day, per person, calculated for the entire delay shall be imposed subject to a maximum of 20% of the total line-item cost. The same shall be applied while processing the payment against claim submission.

14. Validity: 15 months from the date of order placement.

15. Advance Payment: Not applicable

16. Price Escalation Clause: Not Applicable

17. Basis of Evaluation: Overall Lowest

18. Stenciling/Marking: MEJ shall be clearly tagged with item number, location of installation clearly specified on the tag. TPI stamp area to be circled with paint for easy visibility on the tag.

19. Packing & Forwarding:

a. Material Shall be suitably packed and supplied at HPCL, Visakh Refinery, Warehouse. Material should be delivered through a dedicated direct truck only.

b. Adequate protection shall be provided to prevent mechanical damage & atmospheric corrosion in transit at the job site. Welding end shall be protected with a suitable grease & end cap.

c. After inspection & test, EJ shall be completely free from moisture, dirt & loose foreign material of all kinds before start of preparation for shipment.

d. Exposed finished & machined surfaces, including bolting, shall be given a coating of rust inhibiting compound. Internal metal surfaces shall be sprayed or coated with a suitable rust preventative prior to shipment. Opening shall be suitably tagged to indicate the rust preventative applied.

e. EJ assembly / Unit shall be packed as an individual unit.

f. Each assembly shall be identified with its assembly tag number & purchase order number as per EJ Data sheet. A copy of detailed instructions for unpacking, erection/installation, unlocking, testing after installation if any, and commissioning shall be inserted in a plastic envelope & enclosed with its respective assembly.

g. EJ shall be so protected that it may be safely stored on site in the open & unattended.

20. Documentation:

Vendor to submit the given below documents along with the supply of Vessel at Refinery warehouse.

a. Certificates: Two sets of hard copies (original & photocopy) & one set of soft copy (in pen drive) of material Test Certificates, TPI Inspection reports, dimensional reports, TPI clearance certificate, QAP duly attested by TPI, Guarantee certificate.

b. Drawings: Two sets of full size As Built drawings prints + 1 full size soft copy along with Auto Cad drawings (in pen drive). All As Built Drawings after submission shall become property of HPCL and HPCL shall use them as deemed fit.

c. All TC/ MTC for procured material to be given along with TPI Stamp with vendors' name for approval before usage and QAP stage wise approval to be followed.

d. Detailed EJ drawings should include following information for each tag

- Design data (Content, Pressure, Temperature, Test Pressure etc.)
- Bellow spring rate
- Thermal movements (Axial, Lateral, Angular etc.)
- Design cycles
- Effective Area
- Thrust load
- Flow direction.
- All part details with material of construction

21. Dossier Index (as applicable):

Sl. No.	Document Description	Certificate No.	Page
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i.	Inspection Release Note from HPCL/Third-Party Inspection Agency		
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ii.	Certificate of Workmanship/Guarantee Certificate		
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iii.	Name Plate details		
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iv.	Material Summary Chart, with co-relation to TCs		
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- v. Dimension Check Report
- vi. All Test Certificates (co-relation with Summary Chart)
- vii. TPI certified QAP compliance
- viii. Instructions manual for MEJ unpacking, erection, installation, unlocking, site testing if any, commissioning
- ix. PO Copy

22. Guarantee Period: As per attached GTCC

23. Security Deposit: Not Applicable

24. Payment terms:

a. Item No 1 (Supply of MEJ):

i. 95% of the payment for line item shall be made on the receipt of material and all relevant documents (i.e. TC, GC, QAP Compliance Report, IRN etc.) at HPCL, VR.

ii. Remaining amount of 5% for this line item will be released after the completion of MEJ erection in field under the supervision of MEJ supplier (Tentatively scheduled in Q2 of 26-27). However, due to any unforeseen circumstances if the unit outage for carrying out MEJ erection is not available till the expiry of the order, this withheld amount (5%) shall be released before 15 days of the expiry of the order.

b. Item no 2 (Supervision Services): Payment shall be made on per diem basis.

c. All other terms and conditions as per GTCC

4. Technical Clarification regarding the Tender/Scope of Work, if any, can be sought from

MUNAGANURI SRAVAN
AN

Manager - Maintenance

Maintenance Department,
VR

sravan.munaganuri@hpcl.in

Ph. [0891-2894229](tel:0891-2894229)

- **Tender process Enquiry:**

Mr Yogesh Verma, Senior Manager -Purchase, Email: yogeshverma@hpcl.in

Deviation list to be given as follows, if any

Sr.No	Tender No.	Clause No	Brief description of the clause	Reason for the deviation

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/

additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---